

June 28, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 8125
(SEVENTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain Division 2.1 (flammable) and 2.2 (nonflammable) gases and a Class 3 material listed in paragraph 6 below, in non-DOT specification IMO Type 5 portable tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315 and 173.243(c) in that IMO Type 5 portable tanks are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of Permagas, Inc. dated February 22, 2005 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Ammonia anhydrous	2.2	UN1005	n/a
Butadienes, stabilized	2.1	UN1010	n/a
Butane <i>also see</i> Petroleum gases, liquefied	2.1	UN1011	n/a
Dimethylamine, anhydrous	2.1	UN1032	n/a
Ethyl chloride	2.1	UN1037	n/a
Ethylamine	2.1	UN1036	n/a
Isobutane <i>see also</i> Petroleum gases, liquefied	2.1	UN1969	n/a
Isobutylene <i>see also</i> Petroleum gases, liquefied	2.1	UN1055	n/a
Methyl chloride, or Refrigerant gas R40	2.1	UN1063	n/a
Propane <i>see also</i> Petroleum gases, liquefied	2.1	UN1978	n/a
Propylene <i>see also</i> Petroleum gases, liquefied	2.1	UN1077	n/a
Trimethylamine, anhydrous	2.1	UN1083	n/a
Trimethylchlorosilane	3	UN1298	II
Vinyl chloride, stablized or Vinyl chloride, stabilized	2.1	UN1086	n/a

* NOTE: The materials listed above are authorized under this special permit and other Division 2.1 and 2.2 materials which have been specifically identified to and acknowledged in writing by the Office of Hazardous Materials Special Permits and Approvals (OHMSPA) prior to the first shipment.

June 28, 20067. SAFETY CONTROL MEASURES:

a. Prescribed packagings are non-DOT specification non-insulated portable tanks designed and constructed in accordance with Fauvet-Girel drawings nos. CO165 756 Rev. 0, CO-165 765A, CO166651 and Fauvet-Girel list of drawings No. CO-165 824A and calculations on file with the (OHMSPA), and in compliance with the following.

- (1) Code--Complies with ASME Section VIII Div. 1 but not certified, and to IMO Type 5 specification.
- (2) Number of Compartments - One.
(outside dia.) X (length) X (thickness)
- (3) Tank Size (inches) 94.5 235.8 .687
Head Thickness - .750.
- (4) Water Capacity (U.S. Gallons) - 6,418.
- (5) Material - Carbon steel or nickel alloy steel with tensile strength - 82,300 psi, yield strength - 56,560 psi and elongation - 22%.
- (6) Design Pressure (PSIG) - 294.
Note: Design pressure means "maximum allowable working pressure (MAWP)" as used in the ASME Code.
- (7) Test Pressure, Minimum (PSIG) - 441.
- (8) Tank surface area (square feet) - 523.
- (9) Pressure Relief Devices - Each tank must be equipped with 2 safety relief valves in series with and outboard of one rupture disc all set to relieve at not less than design pressure and not more than 110 per cent of tank design pressure. Total venting capacity is 1,455,000 SCFH.

The inlet of the pressure relief device must be in direct communication with vapor space at the midlength of the top centerline of the tank.

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(10) G-Loadings: Vertical down 2; Vertical up 1;
Longitudinal 2; and Transverse 1.

(11) Maximum Gross Weight - 61,729 pounds.

b. Each tank must be equipped with an emergency control discharge valve consisting of internal shut-off valves that are provided with remote control means of automatic closure both mechanical and thermal. The fusible element in the thermal device may not have a melting point exceeding 250°F.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each portable tank must be plainly and durably marked on both sides near the middle, in letters and numbers at least two inches high on a contrasting background, "DOT-SP 8125".

d. When transporting liquefied compressed gases, the tank must be filled in accordance with the provisions of § 173.315.

e. Each tank must be (i) visually inspected prior to each trip to insure that it has not been damaged on the previous trip; and (ii) retested and reinspected once every five years in accordance with § 180.605 as prescribed for DOT Specification 51 portable tanks.

f. Hydrostatic test certifications for each tank must be maintained by the owner or manufacturer at its principal business office and be made available to any representative of the DOT upon request.

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- g. Portable tanks may not be transported in container-on-flat car (COFC) or trailer-on-flat car (TOFC) service except under conditions approved by the Associate Director for Safety, Federal Railroad Administration.
- h. No product may be shipped that has venting requirements exceeding 1,455,000 SCFH. The venting capacity required for each product must be determined by the flow formulas contained in Compressed Gas Association (CGA) pamphlet S-1.2.
- i. Transportation of Division 2.1 (flammable gases) is not authorized aboard cargo vessel unless specifically authorized in the Hazardous Materials Table (§ 172.101).
- j. Packagings permanently marked 'DOT-E 8125', prior to October 1, 2007 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007 must be marked 'DOT-SP 8125'.
- k. Shipping papers displaying 'DOT-E 8125' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Cargo vessel, motor vehicle and rail freight.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

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- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "R. Ryan Foster" or similar, with a stylized flourish.

for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln